

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sruthi Venigalla	Team: Squad #13	CCRB Case #: 201507842	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/13/2015 2:55 PM	Location of Incident: Bay Street and Cross Street	18 Mo. SOL 2/13/2017	Precinct: 120		
Date/Time CV Reported Wed, 09/16/2015 1:16 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 09/16/2015 1:16 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Dalbero	28746	948843	120 PCT
2. POM Rudy Anzalone	27189	945472	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Dalbero	Abuse: PO Michael Dalbero stopped § 87(2)(b)	A . Exonerated
B . POM Rudy Anzalone	Abuse: PO Rudy Anzalone stopped § 87(2)(b)	B . Exonerated
C . POM Rudy Anzalone	Abuse: PO Rudy Anzalone searched § 87(2)(b)	C . Exonerated
D . POM Michael Dalbero	Abuse: PO Michael Dalbero searched § 87(2)(b)	D . Exonerated

Case Summary

On September 16, 2015, § 87(2)(b) filed this complaint in person at the CCRB. His complaint is summarized below:

On August 13, 2015, at approximately 2:55 p.m. in the vicinity of Bay Street and Cross Street in Staten Island, § 87(2)(b) alleged that he was walking north on Bay Street, when he was approached by PO Rudy Anzalone and PO Michael Dalbero of the 120th Precinct, who exited an unmarked police car in plainclothes (**Allegations A and B**).

§ 87(2)(b) who denied committing any crime prior to the stop, stated that he had a small pocket knife concealed in his right front pants pocket. He described the knife as having a three-inch long blade which has to be pulled out, but he denied that it was a gravity knife. According to § 87(2)(b) officers asked him why he had been “fiddling with his hip,” and in response, § 87(2)(b) denied touching his hip. He alleged that the passenger of the vehicle, identified by the investigation as PO Anzalone, lifted up his shirt (**Allegation C**) and asked § 87(2)(b) if he had any weapons on him. § 87(2)(b) stated that he had a pocket knife and told the officers where it was. PO Anzalone entered § 87(2)(b)'s pocket, removed the knife and pulled out the blade (**within Allegation C**). PO Dalbero then handcuffed § 87(2)(b) searched him and removed graffiti labels that he had on his person, and placed him in the back of the police car (**Allegation D**).

The officers then drove § 87(2)(b) around the area and asked him to identify other graffiti markings, and informed him that they would charge him with whatever graffiti that he identified as his. § 87(2)(b) denied responsibility for any of the neighborhood graffiti.

At the 120th Precinct stationhouse, § 87(2)(b) was interviewed by a detective, who further questioned him about graffiti. Six separate arrest reports were created for § 87(2)(b). For each arrest, he was charged with § 87(2)(b), and for the arrest report concerning his stop for this incident, he was additionally charged with § 87(2)(b) (Board Review 38). § 87(2)(b) said he pleaded guilty to § 87(2)(b).

This case was originally assigned to Inv. Roach. She left the agency and it was reassigned to Inv. Venigalla on October 7, 2015.

Mediation, Civil and Criminal Histories

- Due to § 87(2)(b)'s arrest, this case was not eligible for mediation.
- § 87(2)(b) did not file a notice of claim in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b)
- PO Dalbero has been a member of the service for five years. He has been a subject officer in two other cases with three allegations. He has no substantiated allegations. § 87(2)(g)
- PO Anzalone has been a member of the service for seven years. He has been a subject officer in four other cases with ten allegations. He has no substantiated allegations. § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: PO Michael Dalbero stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Rudy Anzalone stopped § 87(2)(b)

Allegation C – Abuse of Authority: PO Rudy Anzalone searched § 87(2)(b)

Allegation D – Abuse of Authority: PO Michael Dalbero searched § 87(2)(b)

It is undisputed that PO Dalbero and PO Anzalone stopped and searched § 87(2)(b) and that § 87(2)(b) had a pocket knife and graffiti stickers on his person. § 87(2)(g)

§ 87(2)(b) stated that he had left a food pantry and was stopped thereafter without having talked with anyone, without having committed a crime, and without having touched his pocket or hip area to adjust the knife in his pocket (Board Review 41).

PO Anzalone and PO Dalbero, who were interviewed on different dates, § 87(2)(g) (Board Review 39-40). They said they were driving slowly on Bay Street and as they got closer to Cross Street, they observed § 87(2)(b) peel off a US Postal sticker with graffiti on it and place the sticker on the side of a building. They had not suspected § 87(2)(b) of possessing a knife at this point. However, they were going to arrest § 87(2)(b) for making graffiti. Upon approach, the officers told § 87(2)(b) he was under arrest for the graffiti. PO Anzalone said he could not recall who searched § 87(2)(b) but that he was searched pursuant to the arrest and that the search yielded the gravity knife. PO Dalbero stated that PO Anzalone conducted the first search, which was pursuant to the arrest, and this search yielded the gravity knife; and PO Dalbero performed a second search prior to placing § 87(2)(b) into the police car.

The knife was vouchered, and it was listed as a red gravity knife (Board Review 37). The officers also vouchered six US Postal stickers with graffiti on them (Board Review 37).

§ 87(2)(g)

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The police may arrest a defendant and take him into custody when they have probable cause that the defendant is committing, has committed, or is about to commit a crime. People v. Debour, 40 N.Y.2d 210, 233 (1976). (Board Review 36).

Officers are entitled to conduct frisks and searches incident to lawful arrests. People v. Hurdle, 93 A.D.2d 419 (1st Dept. 2012) (Board Review 36).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegations A, B, C, and D be exonerated.**

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date